

Executive Engineer, Kanpur Electricity Supply Co. (KESCO) v. Presiding Officer, Consumer Grievances Redressal Forum & Anr.

High Court of Judicature at Allahabad · Division Bench · 29 September 2022 · WRIT - C No. 26816 of 2013 · **Writ dismissed for want of prosecution; interim order vacated.**

HEADNOTE

KESCO challenged a CGRF order that, applying Clause 4.38 of the U.P. Electricity Supply Code, 2005, limited billing after a 2002 permanent disconnection to six months. A Division Bench recorded that s.126 assessment (and the Forum's corresponding jurisdictional exclusion) did not prima facie apply where there was no dispute of recorded consumption, stayed recovery of a Rs.1,38,928 demand on deposit of PD-date arrears plus six months' fixed charges, and later another Division Bench dismissed the writ for want of prosecution and vacated the stay.

FACTUAL SUMMARY

KESCO's Executive Engineer challenged a 1 March 2013 CGRF order. The consumer's meter had been disconnected in 2000 after a last bill of Rs.3,837, and the supply was permanently disconnected from 22 May 2002. The Forum limited post-PD billing to six months under Clause 4.38 of the U.P. Electricity Supply Code, 2005. KESCO argued the Forum lacked jurisdiction because the complaint concerned assessment, excluded by Clause 5.0 (ss.126–127, 135–139 and allied provisions). Recovery was sought of Rs.1,38,928 under a 15 September 2012 demand notice.

HOLDING-UNITS

INTERPLAY · EA2003::126

CGRF jurisdiction where the complaint is billing after permanent disconnection, not s.126 assessment

HOLDING

Section 126 and the CGRF bar on assessment complaints do not prima facie oust the Forum where the grievance is billing after a permanent disconnection and there is no dispute of recorded consumption. The writ attacking the Forum's Clause 4.38 six-month post-PD billing cap was later dismissed for want of prosecution and the 2013 interim stay of the Rs.1,38,928 demand vacated. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CGRF LACKED JURISDICTION BECAUSE THE COMPLAINT WAS AN ASSESSMENT UNDER S.126

Only a prima facie view that there was no assessment dispute; the writ was later dismissed for want of prosecution. ¶ 1-2

NOT DECIDED — WHETHER CLAUSE 4.38 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 LIMITS BILLING AFTER PERMANENT DISCONNECTION TO SIX MONTHS

The Forum so held; the High Court said the matter required consideration and did not decide it. ¶ 2